

		copy of the amended cross-complaint after Defendant filed the request for entry of default, reviewed it and noted what appeared to be legal insufficiencies. (Madaen Decl., ¶¶ 3, 4.) Mr. Madaen does not however state that he did not receive the amended complaint before Plaintiff's default was entered, he was surprised by the default, or that he believed Defendant abandoned his claims for a cross-complaint. These missing statements are especially critical since the proof of service attached to the amended cross-complaint indicates Mr. Madaen was served by email on 9/8/25. (ROA 38.) Thus, Plaintiff failed to establish mistake, inadvertence, surprise or excusable neglect. Plaintiff also failed to file a proposed responsive pleading. The motion is denied.
9	Azami v. LAD Mission Viejo – JLR, Inc. 2024-01374785 Motion for Sanctions	Plaintiff Nahid Azami's Motion for Sanctions is DENIED. Sanctions pursuant to Code of Civil Procedure section 128.7 are permissive and the Court is given discretion to evaluate the circumstances to determine if sanctions are warranted. (Code Civ. Proc., § 128.7(c).) After considering the relevant circumstances, the Court finds Defendant acted with due diligence by attempting to informally resolve the dispute by requesting a stipulation to amend its answer to remove the bankruptcy bar affirmative defense. Plaintiff instead refused to agree to the stipulation and instead brought this Motion. Further, Defendant has now sought leave to amend its answer as required by the Code. The hearing is set for October 19, 2026, after this hearing. Accordingly, the Court determines sanctions are not warranted.